

Court No. - 37

Case :- WRIT - C No. - 44149 of 2012

Petitioner :- Mohd. Afzal

Respondent :- State Of U.P. And Another

Petitioner Counsel :- S.K.A. Rizvi

Respondent Counsel :- C.S.C.,N. Mishra

Hon'ble Ashok Bhushan,J.

Hon'ble Abhinava Upadhyay,J.

Heard learned counsel for the petitioner and Sri Nripendra Mishra, learned counsel appearing for respondent no.2.

By means of this writ petition the petitioner has prayed for quashing the demand notice dated 7.7.2012 for an amount of Rs 57,404/-.

The petitioner's case in the writ petition is that the electricity bill dated 19th March, 2012 was issued to the petitioner for an amount of Rs. 52,009/- which has been filed as Annexure-3 to the writ petition. There is no electric connection in the petitioner's name and the bill has wrongly been issued. He also submits that the demand notice has also incorrectly been issued. He also submits that the name of the father of the petitioner has also incorrectly been mentioned in the notice.

Sri Nripendra Mishra, learned counsel appearing for the Corporation submits that the grievance being electricity bill, the remedy of the petitioner is to file appropriate complaint before the Executive Engineer under the U.P.Electricity Supply Code, 2005.

Considering the facts and circumstances of the case and also the submissions made by the learned counsel for the parties, we are of the view that since the issue raised requires adjudication of facts, the appropriate course for the petitioner is to submit a written objection before the Executive Engineer (respondent no.2) within one month from day which shall be considered and appropriate decision shall be taken by respondent no.2 thereon within a further period of one month. For a period of two months, no coercive steps shall be taken in pursuance of the demand notice dated 7.7.2012.

With the aforesaid observations/directions, the writ petition is finally disposed of.

Order Date :- 4.9.2012

SKM